



SGC TECH AI (Scholarix Global Consultants FZCO)

FINANCE · SYSTEM · TECHNOLOGY

SGC TECH AI (Scholarix Global Consultants FZCO)
Al Maseed Building Office No. 304, 119/12st
Al Rigga
DUBAI DU 0000
United Arab Emirates

Data Processing Agreement — Subscription Layer

SGC-DPA-2026-01

Data Processing Agreement

Layer 3 · Subscription — Companion to SGC-MSA-2026-02 (closes PR-03 open item #10)

Effective Date	01 October 2026	Revision	2 — Hosting and security measures as operated (27 Sep 2026)
Classification	Client-facing	Companion to	SGC-MSA-2026-02
Governing Law	DIFC Courts, Dubai, UAE	Closes PR-03 Item	#10 — Final DPA and privacy documentation

1. Parties and purpose

This Data Processing Agreement ("DPA") is entered into between **SGC TECH AI**, a trade name of **Scholarix Global Consultants FZCO**, IFZA-licensed, Dubai, UAE ("SGC", "Provider", or "Processor"), and the client identified in the applicable Order Form ("Client" or "Controller"). Together, the parties are the "Parties".

This DPA forms part of the Master Services Agreement (SGC-MSA-2026-02) and applies where SGC processes Personal Data on behalf of the Client in the provision of the Subscription Services. Capitalised terms have the meanings given in the MSA or below. Where this DPA conflicts with the MSA, this DPA prevails for data-protection matters.

2. Definitions

Term	Definition
Personal Data	Any information relating to an identified or identifiable natural person processed by SGC on behalf of the Client in the provision of the Subscription Services.
Controller	The Client — the party that determines the purposes and means of processing Personal Data.
Processor	SGC — the party that processes Personal Data on behalf of the Client.
Data Subject	An identified or identifiable natural person whose Personal Data is processed.
Processing	Any operation performed on Personal Data, whether or not by automated means, including collection, recording, organisation, storage, adaptation, retrieval, use, disclosure, transfer, erasure, or destruction.
Sub-Processor	Any third party engaged by SGC to process Personal Data on behalf of



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	the Client.
UAE Data Protection Law	UAE Federal Decree-Law No. 45 of 2021 on the Protection of Personal Data, and any implementing regulations.
DIFC Data Protection Law	DIFC Law No. 5 of 2020, as amended, where applicable to Client data hosted in or accessed from the DIFC.
Security Incident	Any unauthorised access, acquisition, use, disclosure, alteration, loss, or destruction of Personal Data processed by SGC.

3. Roles and scope of processing

3.1 Roles

The Client is the Controller. SGC is the Processor. SGC processes Personal Data only on documented instructions from the Client, including with regard to any change of hosting location, unless required by law. The Client warrants that it has the lawful basis to disclose Personal Data to SGC for the provision of the Subscription Services.

3.2 Scope of processing

SGC processes Personal Data solely for the purpose of providing the Subscription Services described in PR-03 §03, including AML screening signal generation, secure client-intake form processing, record and report generation, and tenant administration. SGC does not use Personal Data, or any other Client data, for any other purpose: not for model training, marketing, profiling, or analytics unrelated to the service, and it never sells or discloses Client data to third parties other than the Sub-Processors in Schedule 1 acting on SGC's instructions.

3.3 Categories of data subjects

Personal Data processed under this DPA typically relates to the Client's customers, beneficial owners, authorised representatives, employees, and any other natural person whose data is submitted to the Platform by the Client or its Authorised Users.

4. SGC obligations

- Process Personal Data only on the Client's documented instructions, including with regard to any change of hosting location;
- Ensure that personnel authorised to process Personal Data are bound by confidentiality obligations no less protective than those in MSA §10;
- Implement and maintain appropriate technical and organisational measures to protect Personal Data against unauthorised access, disclosure, alteration, loss, or destruction (see Section 6);



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- Not engage a Sub-Processor without the Client's prior written authorisation; where SGC's standard Sub-Processors are listed in Schedule 1, the Client authorises them on execution of the Order Form; new Sub-Processors will be notified 30 days in advance with the right to object;
- Assist the Client, by appropriate technical and organisational means, in responding to data-subject requests to the extent SGC is in a position to do so;
- Notify the Client of any Security Incident without undue delay and in any case within 72 hours of becoming aware of it (see Section 7);
- At the Client's election, delete or return all Personal Data after the end of the provision of services, and delete existing copies, unless retention is required by law.

5. Client obligations

- Ensure that it has a lawful basis under UAE Data Protection Law (and any other applicable law) for the disclosure of Personal Data to SGC and for the processing carried out by SGC;
- Provide any required notices to Data Subjects and obtain any required consents before submitting Personal Data to the Platform;
- Be responsible for the accuracy, quality, and legality of the Personal Data and the means by which the Client acquired it;
- Respond to data-subject requests and, where applicable, regulatory enquiries, with reasonable assistance from SGC;
- Promptly notify SGC of any change in the Client's data-protection status that may affect SGC's processing.

6. Security measures

SGC applies the following technical and organisational measures to the Platform:

Domain	Measure
Access control	Role-based access control within each tenant; administrative access limited to authorised SGC personnel; database-management and internal service ports not reachable from the internet; rate-limited login endpoints; immediate removal of access for departing SGC personnel.
Encryption	TLS 1.2 or higher for all traffic between users and the Platform; off-site backups encrypted on the Platform before upload, with keys held only by SGC.
Network security	A separate database for each Client (tenant isolation); traffic routed through a network provider with DDoS protection; host firewall closing internal service ports.
Logging & monitoring	Platform access and application logs; automated alerts for backup and restore-test failures.



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Backup & recovery	Daily backups; encrypted off-site copies; daily copies retained 30 days and monthly copies up to 12 months; automated weekly restore test.
Personnel	Access limited to named SGC personnel on a need-to-know basis; signed confidentiality obligations.
Vulnerability management	Operating-system and platform security updates applied regularly; confirmed vulnerabilities remediated within the timelines in Schedule 2.
Incident response	Severity-based escalation; 72-hour client notification; post-incident review within 15 business days.

7. Security incident notification

SGC will notify the Client of any Security Incident without undue delay and in any case within **72 hours** of becoming aware of it. The notification will describe: (a) the nature of the incident; (b) the likely consequences; (c) the measures taken or proposed to address it; and (d) the Client's point of contact within SGC for further information. SGC will document all Security Incidents, including their effects and remedial action, and will provide the Client with reasonable cooperation in any investigation or notification to Data Subjects or regulators. The Client is responsible for notifying Data Subjects and the relevant regulator where required by law.

8. Hosting location and data protection

The Platform, including all Client Personal Data, is hosted on infrastructure located in the European Union, operated for SGC by the hosting Sub-Processor listed in Schedule 1. Off-site backups are encrypted on the Platform before they are transferred to the backup Sub-Processor listed in Schedule 1, which cannot read them. Wherever it is held, Client data is kept secure under the measures in Section 6, is processed only to provide the Subscription Services, and is never sold, shared for marketing, or used to train models. By signing the Order Form, the Client acknowledges this hosting location and authorises the transfer of Personal Data to it; SGC applies safeguards recognised under UAE Data Protection Law, including standard contractual clauses where required. SGC will give the Client at least 30 calendar days' prior written notice before moving Client Personal Data to a different hosting location.

Where the Client requests that its data be hosted in a specific location, SGC will assess feasibility and, if agreed, provide that hosting under a Change Order stating the migration charges and any other applicable fees. Custom hosting is optional and applies only where the Client has requested it and a Change Order has been signed by both parties.



9. Sub-Processors

SGC's current list of Sub-Processors is maintained in Schedule 1. SGC will provide the Client with 30 calendar days' advance written notice of any addition or replacement of a Sub-Processor. The Client may object to a new Sub-Processor on reasonable data-protection grounds by written notice within the 30-day window. In such case, the Parties will discuss in good faith; if SGC cannot accommodate the objection, the Client may terminate the affected Subscription Services without penalty, subject to payment for services rendered up to the termination date.

10. Data return and deletion

On termination of the Subscription Services, and at the Client's election, SGC will either (a) return all Personal Data to the Client in a standard machine-readable format within 30 calendar days, or (b) delete all Personal Data and certify deletion in writing. SGC will delete existing copies of Personal Data in its backups within 60 calendar days, unless retention is required by law. The account-state schedule in PR-03 §08 applies during the pre-termination period.

11. Audit rights

The Client may, at its own cost and no more than once per calendar year, conduct an audit of SGC's compliance with this DPA, subject to: (a) 30 calendar days' advance written notice; (b) reasonable scope; (c) non-disclosure of SGC confidential information; and (d) conduct during business hours in a manner that does not unreasonably disrupt SGC operations. Alternatively, SGC will provide, on request and no more than once per calendar year, a written description of the measures in Section 6 with supporting evidence, which the Client agrees satisfies its audit rights under this Section.

12. Limitation of liability

SGC's liability under this DPA is subject to the limitation of liability in MSA §12 and is capped at the Subscription Fees paid by the Client in the trailing 12 months. The Client acknowledges that SGC's aggregate liability under the MSA, AMC, and this DPA combined does not exceed the aggregate cap in the MSA.

13. Governing law and dispute resolution

This DPA is governed by the laws of the Dubai International Financial Centre (DIFC). The parties submit to the **exclusive jurisdiction of the DIFC Courts**. The dispute-escalation procedure in MSA §14.2 applies.



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14. Schedule 1 — Sub-Processors

Sub-Processor	Purpose	Location
Cloud hosting provider	Tenant hosting, compute, storage, networking	European Union
Network and security provider	TLS, DDoS protection and traffic routing; data passes through in transit only	Global network (transit)
Email/notification service	Transactional email delivery (platform notifications)	Per provider (named in the Sub-Processor register)
Screening source provider(s)	Sanctions / PEP list data feed for AML screening	Per source agreement
Backup storage provider	Encrypted off-site backups (encrypted before upload; the provider cannot read them)	Provider's infrastructure (encrypted data only)

Note: Specific vendor names are listed in the operational Sub-Processor register maintained by SGC and available to Clients on request, subject to confidentiality.

15. Schedule 2 — RTO/RPO and remediation SLA

Metric	Target
Recovery Time Objective (RTO) — platform availability	4 hours
Recovery Point Objective (RPO) — data loss tolerance	24 hours
Critical vulnerability remediation	15 business days from confirmation
High vulnerability remediation	30 business days from confirmation
Medium vulnerability remediation	60 business days from confirmation
Backup restore test frequency	Weekly (automated)

Acceptance and signature

By signing below, the parties confirm that they have read, understood, and agreed to be bound by this Agreement. This document is non-binding until signed by both parties.

FOR THE CLIENT	FOR SGC TECH AI
Legal entity name: _____	Authorized Signatory: _____



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Authorised signatory: _____

Title: _____

Date: _____

Signature: _____

For & on behalf of: SGC TECH AI

Entity: Scholarix Global Consultants FZCO

Trading as: SGC TECH AI · IFZA-Licensed · Dubai,
UAE

Title: Authorized Signatory

Date: _____

Signature: _____